



POLICE DEPARTMENT

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In the Matter of the Disciplinary Proceedings :
- against - : FINAL
Police Officer Ronald Taylor : ORDER
Tax Registry No. 924544 : OF
Housing Police Service Area 9 : DISMISSAL
-----X

Police Officer Ronald Taylor, Tax Registry No. 924544, Shield No. 14688, Social Security No. ending in [REDACTED], having been served with written notice, has been tried on written Charges and Specifications numbered 2013-10305, as set forth on form P.D. 468-121, dated August 22, 2013, and after a review of the entire record, Respondent having pleaded Guilty, is found Guilty as charged.

Now therefore, pursuant to the powers vested in me by Section 14-115 of the Administrative Code of the City of New York, I hereby DISMISS Police Officer Ronald Taylor from the Police Service of the City of New York.


WILLIAM J. BRATTON
POLICE COMMISSIONER

EFFECTIVE: 0001 hrs. April 14, 2016

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POLICE DEPARTMENT

March 30, 2016

-----X
In the Matter of the Charges and Specifications : Case No.
- against - : 2013-10305
Police Officer Ronald Taylor :
Tax Registry No. 924544 :
Housing Police Service Area 9 :
-----X

At: Police Headquarters
One Police Plaza
New York, New York 10038

Before: Honorable Robert W. Vinal
Assistant Deputy Commissioner Trials

APPEARANCE:

For the Department: David Green, Esq.
Department Advocate's Office
One Police Plaza
New York, New York 10038

For the Respondent: Craig Hayes, Esq.
Worth, Longworth & London, LLP
111 John Street - Suite 640
New York, NY 10038

To:

HONORABLE WILLIAM J. BRATTON
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NEW YORK 10038

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Charges and Specifications:

1. Said Police Officer, Ronald Taylor, while on-duty and assigned to the 44 Precinct, on or about August 12, 2013, within the confines of the 44 Precinct, did engage in conduct prejudicial to the good order, efficiency or discipline of the New York City Police Department, to wit: said Police Officer engaged in a physical altercation with Person A while Person A was handcuffed.

P.G. 203-10, Page 1, Paragraph 5 – PUBLIC CONTACT – PROHIBITED
CONDUCT

2. Said Police Officer, Ronald Taylor, while off-duty, on or about August 21, 2013, wrongfully possessed a duplicate copy of said officer's 2012 New York City Police Department Restricted Parking Permit, without permission or authority to do so.
NYC Admin. Code Section 14-108 – DUPLICATE DEPARTMENT PERMITS

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on January 8, 2016. Respondent, through his counsel, entered pleas of guilty to the subject charges. Respondent testified in mitigation of the charges. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

Since Respondent pleaded guilty as charged, I find Respondent guilty of the charged misconduct.

FINDINGS AND ANALYSIS

On August 12, 2013, Person A was apprehended inside the Target retail store (the store) located [REDACTED], by store security guards for shoplifting. Person A was placed inside the security office's holding area and he was handcuffed. Since the store is located within the confines of the 44 Precinct, the store security guards contacted the precinct and Respondent and his partner, [REDACTED], responded to the store.

While Cruse was preparing arrest paperwork and conferring with the store security guards, Respondent was alone with Person A inside the holding area. Respondent engaged in a physical altercation with Person A while he was rear handcuffed which resulted in Person A suffering a broken nose and a ruptured eardrum. Respondent was arrested and he pleaded guilty in Criminal Court Bronx County to Assault in the Third Degree, a Class A misdemeanor. He was sentenced to a Conditional Discharge and required to perform 15 days of community service, which he completed. When Respondent, on August 21, 2013, was suspended from duty for engaging in this physical altercation, he was found to be in possession of a duplicate copy of his 2012 Department Restricted Parking Permit.

Respondent's altercation with Person A inside a holding room was recorded by a store security camera [Department Exhibit (DX) 1]. This video-only recording shows that when Respondent and Cruse initially entered the holding room, Person A was handcuffed to a bench. Cruse unlocked the store security guard's handcuffs and detached Person A from the bench. He then rear handcuffed Person A and left the room. While Respondent was standing in front of the open entrance door to the room, the video depicts the following chronology:

- Person A stands up from the bench and starts to walk toward the open door. (DX 1 at 9:33:38).
- Respondent pushes and holds Person A against the wall with his left hand. Respondent's partner Cruse briefly enters the room. (DX 1 at 9:33:40 – 9:34:18)
- Person A moves away from the wall and starts to walk toward the door five separate times. Each time Respondent shoves Person A backwards by pushing him in his face and neck area. (DX 1 at 9:34:20 – 9:34:38).
- Respondent pushes Person A backwards and holds Person A against a wall with his left hand. Respondent's hand appears to be on Person A's upper chest and neck area. Respondent's partner Cruse briefly enters the room and then leaves. (DX 1 at 9:34:57 – 9:35:08).

- Person A comes off the wall and in response Respondent grabs Person A with both of his hands. (DX 1 at 9:35:08 – 9:35:16).
- While holding Person A against the wall with his left hand, Respondent slaps Person A's face five times pausing between each slap. (DX 1 at 9:35:18 – 9:35:30).
- Respondent throws punches at Person A face. Person A bends over at the waist and turns his body to the right toward the wall. Respondent throws numerous upper cut punches at Person A's face while Person A is looking down at the floor. (DX 1 at 9:35:36 – 9:35:44).
- While Person A is still bent over, Respondent puts his hands on Person A's back and pushes him in the back causing the top of Person A's head to hit the wall. (DX 1 at 9:35:45 – 9:35:48).
- Respondent's partner Cruse enters the room. Respondent wipes the right side of his face with his right hand. Respondent hits Person A in the face twice. (DX 1 at 9:35:51 – 9:36:02).
- Respondent puts his left hand on Person A's neck area and holds him against the wall. (DX 1 at 9:36:06 – 9:36:22).
- Cruse re-enters the room and Respondent and Cruse escort Person A out of the room. (DX 1 at 9:36:23 – 9:36:28).

Respondent testified that Person A became agitated when he overheard Cruse and the store security guards discussing discarding personal property items that Person A was carrying when he entered the store, and that Person A began yelling, "You're not going to throw away my fucking stuff." When Person A got off the bench and stood up, Respondent told Person A, "Calm down, back up," and he put his hand on Person A's chest and pushed him backwards several times. Respondent acknowledged that he then "regrettably" slapped Person A hard on his face several times. Person A then spit in his face and Respondent "saw red." He became "enraged to the point of acting against my normal personality" and punched Person A several times in the face with a closed fist. He continued punching Person A even when Person A was bent over at the waist with his head up against the back wall of the room and even though Person A offered no physical resistance. Respondent acknowledged that he continued to punch Person A even after Cruse entered the room. Respondent recalled that Cruse asked him, "Are you all right?"

Respondent testified that he had never done this before to any civilian. Respondent expressed remorse for his attack on Person A. He asserted that at the 44 Precinct, he apologized to Person A and provided him with his name and shield number. He apologized to Person A a second time when Person A appeared at the Queens Property Clerk's office, where Respondent was assigned while on modified duty, to collect his personal items. Respondent testified that he was "ashamed" and "disgusted" with himself because he had "completely lost control" of himself "for the first time" in his career as a police officer and because Person A did not deserve what he did to him. Respondent requested that he be allowed to retain his position as a uniformed member of the service so that he could be afforded a "chance at redemption."

PENALTY RECOMMENDATION

In order to determine an appropriate penalty, Respondent's service record was examined. See *Matter of Pell v. Board of Education*, 34 N.Y.2d 222 (1974).

Respondent was appointed to the Department on July 7, 1999. Information from his personnel record that was considered in making this penalty recommendation is contained in the attached confidential memorandum.

The Assistant Department Advocate (the Advocate) recommended that Respondent be immediately dismissed from the Department. The Advocate did not cite to any previous disciplinary decisions to support this penalty recommendation.

The video shows that Respondent engaged in a physical altercation with Person A while Person A was rear handcuffed, and while they were alone inside a holding room. Since Person A at first tried to walk toward the door several times, Respondent's initial physical action of pushing Person A backwards with an open hand several times did not constitute an improper use of force.

However, Person A was stationary, standing against a wall, and offering no physical resistance, when Respondent slapped him in the face numerous times and then punched him in the face a number of times. Most disturbingly, when Person A bent over at the waist and his head was facing toward a wall, Respondent continued to punch him, by throwing upper cut punches at his face, and Respondent then pushed Person A in the back causing Person A's head to hit the wall. Person A suffered a broken nose and a ruptured eardrum and Respondent pleaded guilty in Criminal Court to having committed Assault in the Third Degree.

Respondent testified that he did not punch Person A with a closed fist until after Person A spit in his face, a claim which has some support because on the video Respondent is seen wiping his face with his hand. However, even if I credited Respondent's claim that Person A spit in his face, this would not serve to mitigate Respondent's subsequent pummeling of Person A because officers are required to maintain self-control even when a handcuffed prisoner engages in highly antagonizing actions.

In a recent decision, *Case No. 2011-5248* (Jan. 8, 2016), an eight-year officer was dismissed from the Department after he was found guilty of engaging in a physical altercation with a 17-year-old youth. After the youth was released from custody at a precinct, the officer followed the youth from the stationhouse into an alleyway where he kneed him, struck him with his leg, punched him in the face and then left him in the alley. As here, the force used by that officer was found to be excessive and without a legitimate police purpose and the officer was convicted in Criminal Court of having committed Attempted Assault in the Third Degree. The Trial Commissioner found that the excessive and gratuitous force used by the officer, as depicted in a video of the incident, was so egregious that he should be immediately dismissed from the Department even though the officer had no previous disciplinary record and even though, unlike

here, the youth suffered a minor facial wound. The Police Commissioner ultimately approved this penalty.

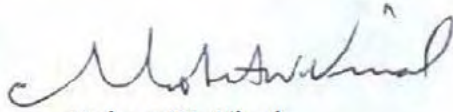
Although penalties of less than immediate dismissal from the Department have been imposed in some cases where officers have punched handcuffed prisoners, these cases have generally involved a single punch or a few punches. See *Case No. 2014-12487* (Sept. 10, 2015), a five-year officer who had no prior disciplinary record forfeited 15 vacation days as a penalty for punching a handcuffed prisoner once in the mouth which broke his jaw; *Case No. 2015-13552* (Jan. 7, 2016), where a five-year officer who had no prior formal disciplinary record forfeited 30 vacation days and was placed on dismissal probation after the officer pleaded guilty to having punched the face of a handcuffed prisoner who had kicked the officer; and *Case No. 2015-13536* (Feb. 18, 2016), where an eight-year officer with no prior disciplinary record forfeited 31 suspension days as a penalty after he pleaded guilty to having engaged in a physical altercation by punching the face of a bicyclist who had spit in his face.

In determining a penalty recommendation here, I have taken into consideration that Respondent has never previously been the subject of formal discipline and that he has never been the subject of a civilian complaint that was substantiated by the Civilian Complaint Review Board. Since between 1999 and 2013 no allegations of any kind were made against him, his actions here appear to be an aberration from the manner in which he has normally treated civilians and prisoners. Nonetheless, there is no guarantee that Respondent will never again lose control and become enraged to the point of acting against his normal personality if he is returned to full duty.

Therefore, I am constrained to recommend that Respondent be DISMISSED from the New York City Police Department. However, Respondent's remorse and contrition for his

misconduct, and his performance and sick leave record, may warrant consideration for a post-trial settlement.

Respectfully submitted,



Robert W. Vinal
Assistant Deputy Commissioner Trials

APPROVED

APR 14 2016

WILLIAM J. BRATTON
POLICE COMMISSIONER



POLICE DEPARTMENT CITY OF NEW YORK

From: Assistant Deputy Commissioner Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
POLICE OFFICER RONALD TAYLOR
TAX REGISTRY NO. 924544
DISCIPLINARY CASE NO. 2013-10305

Respondent received an overall rating of 4.0 on his 2014 annual performance evaluation, 4.5 on his 2013 evaluation, and 3.5 on his 2012 evaluation. He has been awarded one Excellent Police Duty medal. [REDACTED]

[REDACTED] He has no prior formal disciplinary record.

On October 20, 2014, he was placed in Level 2 Discipline Monitoring which is continuing. Respondent was suspended twice; from August 21, 2013 to September 20, 2013, and again from May 15, 2015 to June 15, 2015 in regard to these charges.

For your consideration.

Robert W. Vinal
Assistant Deputy Commissioner Trials